

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/31/07/2023.

Date: 18th July 2023.

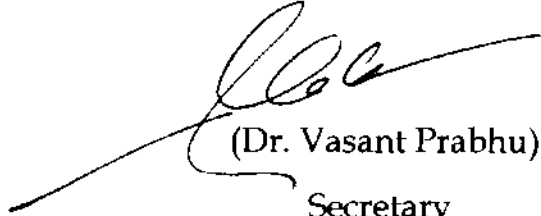
To,
The Collector, Mumbai Suburban,
Office of Collector, Administrative Building,
9th floor, Government Colony,
Opp. Chetana College, Bandra (East),
Mumbai-400 051.

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000192524 filed by Ashish Kejriwal Vs. JVPD Properties Private Limited in Project No. P51800011181.

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,



(Dr. Vasant Prabhu)
Secretary

MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When the Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

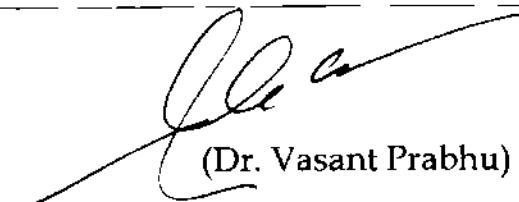
No. MahaRERA/VH/WARRANT/31/07/2023.

Date: 18th July 2023.

1.	Name and address of the firm: -	Ashish Kejriwal B4-406, Greenland Apartment, J B Nagar, Andheri East, Mumbai Suburban - 400059. Mobile No.- +91- 9819727270 Email ID: - mail@drassociates.co.in
2.	The sum to be recovered.	Refund of the principal amount of Rs. 15,86,400/- along with interest at 10.25% p. a. till full refund of the amount to the complainant by the respondent and a cost of Rs. 10,000/- payable to the complainant
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under	Complaint No.: CC006000000192524

	which amount is ordered to be recovered.	Final Order dated: 18 th February 2020
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	JVPD Properties Private Limited Pan No. AACCCJ5203H 501, PRIME PLAZA, S. V. ROAD, SANTACRUZ WEST, NEXT TO ASHA PAREKH HOSPITAL, MUMBAI SUBURBAN - 400054. DIIPESH LAKSHMAN BHAGTANI - Authorized Signatory 501, PRIME PLAZA, S. V. ROAD, SANTACRUZ WEST, NEXT TO ASHA PAREKH HOSPITAL, MUMBAI SUBURBAN - 400054. Details of Contact Person: DEVEN - OFFICE ASSISTANT Mobile No.- +91- 9167602404 Email ID: - bmc3@jayceehomes.com
6.	Full details of the property of defaulter against which the process may be executed.	The flat bearing no. B 2303, in the Project known as "Serenity- Bldg 1" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. CTS 63 A5 AND 64 D at Powai, Mumbai Suburban - 400076. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800011181.

		b) Other apartments, which are still not booked. Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./II No. of the property f) Area of the property in square meters g) CTS No. of the property area of the property.	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.


 (Dr. Vasant Prabhu)
 Secretary

Mumbai

Date: 18th July 2023

MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/31/07/2023.

Date: 18th July 2023.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000192524

Project No: P51800011181

Ashish Kejriwal

--- Complainants.

Versus

JVPD Properties Private Limited

--- Respondent.

To,
The Collector, Mumbai Suburban,
Office of Collector, Administrative Building,
9th floor, Government Colony,
Opp. Chetana College, Bandra (East),
Mumbai-400 051.

Whereas the above-named complainant has filed the above complaint No. **CC006000000192524**, and the Authority/Adjudicating Officer passed the enclosed order wherein the respondent was directed to refund of the amount paid by the complainants from the Respondent at the rate of 10.25% p.a. along

with a cost of Rs. 10,000/-.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Ashish Kejriwal

B4-406, Greenland Apartment, J B Nagar, Andheri East, Mumbai Suburban - 400059.

Mobile No.- +91- 9819727270

Email ID: - mail@drassociates.co.in

2) Name of respondents/ promoters/ directors/ partners with their addresses:

JVPD Properties Private Limited

Pan No. AACJ5203H

501, PRIME PLAZA, S. V. ROAD, SANTACRUZ WEST, NEXT TO ASHA PAREKH HOSPITAL, MUMBAI SUBURBAN - 400054.

DIIPESH LAKSHMAN BHAGTANI - Authorized Signatory

501, PRIME PLAZA, S. V. ROAD, SANTACRUZ WEST, NEXT TO ASHA PAREKH HOSPITAL, MUMBAI SUBURBAN - 400054.

Details of Contact Person:

DEVEN - OFFICE ASSISTANT

Mobile No.- +91- 9167602404

Email ID: - bmc3@jayceehomes.com

3) Name of the project & its location:

The flat bearing no. B 2303, in the Project known as "Serenity- Bldg 1" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. CTS 63 A5 AND 64 D at Powai, Mumbai Suburban - 400076.

a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800011181.

b) Other apartments which are still not booked.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may

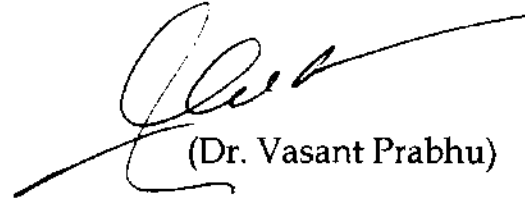
adopt the procedure similar to which laid down under Order 21 Rule 41 CPC – namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

5) Amount to be refunded:

Refund of the principal amount of Rs. 15,86,400/- along with interest at 10.25% p. a. till full refund of the amount to the complainant by the respondent and a cost of Rs. 10,000/- payable to the complainant.

6) Enclosures:

- i) Final order dated 18th February 2020.
- ii) Order of Non-compliance dated 4th July 2023.
- iii) Calculation submitted by the complainant.



(Dr. Vasant Prabhu)

Secretary

Mumbai

Date: 18th July 2023

MahaRERA, Mumbai

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATION**

In

1. Complaint No. CC006000000054784

Anil Kumar jaiswal ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

2. Complaint No. CC006000000054802

Ravikant Gour ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

3. Complaint No. CC006000000110798

Ashesh Garg And Manu Garg ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

4. Complaint No. CC006000000141027

Ankur Garg ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

5. Complaint No. CC006000000141028

Praveen kumar Garg ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

6. Complaint No. CC006000000192524

Ashish Kejriwal ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

7. Complaint No. CC006000000192547

Darshana Tolani ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

8. Complaint No. CC006000000192571

Gaurang Naik ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

9. Complaint No. CC006000000192572

Janak Dalal ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

10. Complaint No. CC006000000192574

Lovneesh Bansal ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

11. Complaint No. CC006000000192577

Sameer Pandya ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

12. Complaint No. CC006000000192579

Samir Trivedi ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

13. Complaint No. CC006000000192665

Sumit Mahesh Gupta ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

14. Complaint No. CC006000000192669

Sanjay Mahadik ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

15. Complaint No. CC006000000192671

Durga D Mishra ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

Along With

16. Complaint No. CC006000000192827

Suman Vinayak Ghuge ...Complainant/s

Versus

JVPD Properties Private Limited ...Respondent/s

MahaRERA Registration No. P51800011181

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Complainants appeared in person at Sr. Nos. 1 & 2

Adv. Godfrey Pimenta appeared for the Complainants at Sr. Nos. 3 to 5.

Adv. Avinash Pawar appeared for the Complainants at Sr. Nos. 13 to 16.

Remaining Complainants were absent.

None appeared for the Respondent.

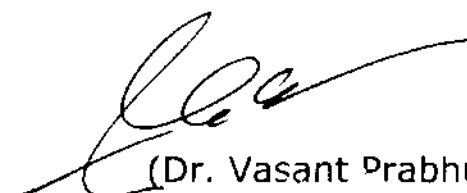
Order

4th July 2023

(Through Video Conferencing)

1. The complainants abovenamed have filed the present 16 applications for non-compliance of the various MahaRERA Orders issued in the above-mentioned Complaints (hereinafter referred to as the said complaints), by the respondent.
2. In the said complaints filed by the complainants, the respondent was directed to refund of the amounts paid by the complainants to the respondent along with the interest at the rate of 10.5% p.a. from the date of receipt till they are refunded. The respondent was also directed to pay cost of Rs. 20,000/- to each of the complainants.
3. On the said non-compliance application, the hearing was held through video conferencing as per the MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. During the hearing, the complainants submitted that the respondent has failed to comply with the orders issued by the MahaRERA authority and has not refunded the amounts to the complainants along with the applicable interest at 10.5% p.a. to the complainants as per the said orders. The complainants therefore sought the issuance of recovery warrants against the respondent under section 40(1) of RERA.
5. The respondent did not appear for the hearing even though the notice of hearing was duly served upon it.

6. After hearing the arguments of the complainants, it is pertinent to note that the respondent has failed to comply with the orders issued by the MahaRERA authority to date and has not paid the refund along with the interest to the complainants as per the directions issued in the said orders. Hence, the orders issued by the MahaRERA authority remain not complied with by the respondent. Hence, any further time granted to the respondent would lead to injustice to the complainants. Hence, the complainants are entitled to seek issuance of recovery warrants against the respondent for recovery of the said amounts payable by the respondent.
7. Therefore, the MahaRERA has no alternative but to proceed with action under section 40(1) of RERA against the respondent. It is therefore, directed to issue individual recovery warrants under section 40(1) of RERA read along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017, against the booked flats in the said project of the respondent.
8. In view of the above, the 16 applications of non-compliance stand disposed of.



(Dr. Vasant Prabhu)
Secretary, MahaRERA

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

COMPLAINT NO: CC006000000192524

Ashish Kejriwal ... Complainant.

COMPLAINT NO: CC006000000192547

Darshana Tolani ... Complainant

COMPLAINT NO: CC006000000192571

Gaurang Naik ... Complainant.

COMPLAINT NO: CC006000000192572

Janak Dalal ... Complainant.

COMPLAINT NO: CC006000000192574

Lovneesh Bansal ... Complainant.

COMPLAINT NO: CC006000000192577

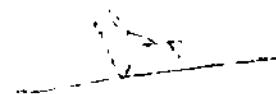
Sameer Pandya ... Complainant.

COMPLAINT NO: CC006000000192579

Samir Trivedi ... Complainant.

Versus

JVPD Properties Pvt. Ltd. ... Respondents.
(Serenity- Bldg 1)
MahaRERA Regn P51800011181



Coram: B.D. Kapadnis
Member II.

Appearance:

Complainants: Adv. Mr. Dinesh Rane.

Respondents: Adv. Mr. Alok Kumar Singh.

FINAL ORDER
13th February 2020.

The complainants have filed the complaints under Section 18 of RERA for getting refund of their amount paid to the respondents in respect of booking of their flats in respondents' registered project Bhagtani Serenity situated at Village Tirandaz, Taluka Kurla. The necessary information furnished by the complainants is as under:-

Complainant/s	Flat No.	Amount Paid (Rs)
Ashish Kejriwal	B-2303	15,86,400/-
Darshana Tolani	A-2102	27,61,752/-
Gaurang Naik	C-2701	14,09,952/-
Janak Dalal	C-1701	14,09,952/-
Lovnesh Bansal	A-2001	15,04,392/-
Sameer Pandya	B-2304	15,86,400/-
Samir Trivedi	B-1702	14,09,952/-

Complainants contend that respondents issued the allotment letters containing therein that respondents shall complete the construction within the period of 42 months from the receipt of final completion certificate from project level if the clearances are not obtained. As per the period of 9 months with the grace period of next 3 months, the allottees shall be entitled to terminate the allotment letters and discontinue respondents by their

letter dated 24th July 2017 showed their inability to complete the construction and give possession as agreed. Respondents made themselves liable to refund all the amount paid by the complainants with interest under Section 18 of Real Estate (Regulation and Development) Act, 2016 (RERA).

2. The respondents have filed the reply in some complaints and their learned Advocate submits to treat them as a common reply in all the complaints. Respondents contend that the complainants are the investors and they are not allottees because in Para 11 & 12 of the provisional allotment letters they have admitted that they are investors. The provisional letters for booking are subject to approvals and permission to be granted by various authorities for construction. It is a contingent contract and therefore it cannot be enforced as the approvals and permissions required for construction have not been granted. Section 18 of RERA is not retrospective. Hence they are not to direct a refund of money.

3. Following points arise for my determination and findings thereof are as under:

Points.	Findings.
1. Whether the respondents failed to complete the project as agreed?	Affirmative.
2. Whether the complainants are entitled to get back their amount with interest?	Affirmative.

Reasons.

4. In Neelkamal Realtors Suburban Pvt. Ltd. v. Union of India (W.P.No. 2737 of 2017) Their Lordships of Bombay High Court have held that sections 12 and 18 of RERA are retroactive. Allotment letters disclose

the fact that the complainants agreed to purchase and respondents agreed to sell flats and therefore I do not find that complainants are investors. I find that they are allottees as defined by section 2(d) of REPA. Hence this Authority has jurisdiction to entertain these complaints.

5. Complainants have relied upon the allotment letters issued by the respondents. On their perusal it becomes clear that the respondents made false statement/representation that the project is viable and it would be completed.

6. Complainants have not received the letter dated 24-07-2017 but they have relied upon the letter received by another allottee Mr Gaurang Naik from the same project disclosing the fact that for various reasons mentioned in the said letter, it is not possible for them to proceed ahead with the project and complete it. Hence, the complainants have proved that the respondents have failed to construct and complete the project as agreed. Respondents have failed to complete the project due to its abandonment. Hon'ble High Court has also referred to such situation where the promoters can claim frustration when they are unable to complete the project for no fault of their own, in the case of Neelkamal Realtors Suburban Pvt Ltd. v/s. Union of India W.P.No. 2727 of 2017. In para 259 of the judgement Their Lordships have mentioned that even in such a situation promoter will have to return the allottees' amount with interest. Hence the complainants are entitled for refund of their amount.

7. I have held that the complainants are entitled to get back their amount. They are entitled to get refund of those amount with the interest at prescribed rate from the date of payment till their refund. The prescribed rate of interest is 2% above the SBI's highest MCLR which is currently 8.25%. No separate compensation is pressed. The complainants are also entitled to



get Rs. 10,000/- towards the cost of their complaint. Hence, the following order.

ORDER

- a) The respondents shall reimburse complainant's cost incurred by them mentioned in the table of charges enclosed at Annexure 10.23 hyper annum from the date/s of their payment till their claim is settled.
- b) The respondents shall pay compensation Rs. 10,000/- towards the cost of their complaint.
- c) The charge of aforesaid amount shall be on the respondent's property under project bearing C.O.S. No. 63A/5 and 64B/5 of village Tirandaz Taluka Karla Mumbai till the complainant's claims are satisfied.

Mumbai.

Date: 18.09.2020


R. D. Vaidya
Member,
VidhaKendra Mumbai.